

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

May 19, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Roberson vs. Orange Unified School District 25-01501917	1. Demurrer to First Amended Complaint Defendant ORANGE UNIFIED SCHOOL DISTRICT ("District") moves the Court for an order sustaining their demurrer to each and every cause of Action in Plaintiff's First Amended Complaint. Demurrer is overruled. Defendant's chief argument is that Plaintiff's entire FAC is subject to demurrer as Plaintiff's first through fifth causes of action are all barred by Government Code § 815, which precludes common law tort liability against public entities absent a specific statutory basis. However, the specific statutory basis has been expressly pled in each cause of action. (See FAC¶¶26, 37, 46, 58, 63, 76.)

		Defendant makes other arguments that should go to the merits of the case, and not the pleading (such as, whether it is immune, whether Pena had discretion in his conduct, whether Pena was acting in the course and scope of his employment.) Given that all causes of action have identified a statutory basis for government tort liability, Defendant is on notice of the claims pled against it. Defendant to file an Answer within 20 days. Plaintiff to give notice. 2. Case Management Conference
102	Trebunskaya vs. Gaugh 25-01481490	Motion to Set Aside/Vacate Default Defendants Kenneth Gaugh, Domenic J. Trutanich and Domenic J. Trutanich & Associates seek an order setting aside the defaults entered against them on 8/19/25 by Plaintiff Irina Trebunskaya. Code of Civil Procedure §473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (CCP §473(b).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233; see Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 696.) Thus, where the party in default moves promptly to seek relief, and no prejudice to the

		opposing party will result from setting aside the default and letting the case go to trial on the merits, “very slight evidence will be required to justify a court in setting aside the default.” (Elston at 233 (internal quotes omitted); Fasuyi at 696.) “Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Elston at 235.) Here, Defendants presented evidence that they were in discussions with Plaintiff’s counsel regarding the appropriate venue for this action when their defaults were taken. (Gauth Decl. ¶¶2-3.) Plaintiff’s counsel ultimately agreed that venue is not proper in Orange County. (Id. at ¶ 4.) Counsel for Plaintiff and counsel for Defendants have each submitted stipulations to the Court which seek to vacate the defaults and transfer venue to Los Angeles County Superior Court; however, both stipulations have been rejected by the clerk due to formatting issues. (Id. at ¶¶ 4-5.) The motion was filed within six months of the defaults, and Defendants have submitted a proposed Answer with their motion. Accordingly, the motion to set aside defaults is GRANTED. Defendant shall file their Answer within 10 days. Moving party to give notice.
103	Im vs. Ken Hotels & Resorts Holdings LTD 25-01481737	Motion to Strike Portions of Complaint Defendant Ken Hotels & Resorts Holdings, Ltd. (“Defendant”) moves to strike the claims for punitive damages, attorney fees, and injunctive relief/abatement set forth in plaintiffs Jonathan Im, Angel Dimas, Genesis Camarena, and Alexis Lima’s (“Plaintiffs”) Complaint. The Court may, on motion by a party, strike out any irrelevant, false, or improper matter inserted in any

		pleading, or any part that is not filed in conformity with the laws of this state. (Code. Civ. Proc., § 436.) As with a demurrer, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (Code. Civ. Proc., § 437(a).) Allegations are assumed to be true. (Blakemore v. Superior Court (2005) 129 Cal.App.4th 36, 53.) Defendant contends that the claim for punitive damages is unsupported by any facts. Defendant argues that the allegation that Defendant was on constructive or actual notice of the bed bug infestation in light of numerous guest complaints cannot support the claim because the sources of those complaints are unspecified, unidentified, and unsubstantiated. Defendant further argues that the allegations are based on unsubstantiated allegations in another legal proceeding filed by Plaintiffs’ counsel and Plaintiffs have no personal knowledge of any circumstances that warrant a request for punitive damages. To support exemplary damages, the complaint must allege facts of defendant’s oppression, fraud, or malice, as required by Civil Code section 3294. (Civil Code § 3294(a); College Hospital Inc. v. Superior Court (1994) 8 Cal. 4th 704, 721; Turman v. Turning Point of Central Calif., Inc. (2010) 191 Cal.App.4th 53, 63.) “Malice” is defined as conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civil Code § 3294(c)(1).) Plaintiffs allege that Defendant had actual and constructive notice that their room was contaminated with a bed bug infestation, as numerous guests had complained about bed bugs, and did not disclose the infestation or warn Plaintiffs of it, subjecting them to physical injuries such as bites, skin rashes, allergic reactions, and emotional distress. These allegations, accepted as true, are sufficient to support a claim for
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	punitive damages. While the names of the guests who complained of bed bugs prior to Plaintiffs' stay are not alleged, as Defendant points out, the names and identities of the guests is not necessary at the pleading stage for Plaintiffs' allegations to demonstrate malice. Further, Plaintiffs' personal knowledge of the complaints of other guests is not required for the imposition of punitive damages against Defendant. The focus is on what Defendant knew or should have known and chose not to disclose, and whether or not Plaintiffs have personal knowledge of the complaints has no bearing on those issues. Next, Defendant argues that the claim for attorney fees, which is based on Civil Code section 1717 and Code of Civil Procedure section 1021.5, fails because Plaintiffs have not alleged the existence of any contract with an attorney fee provision and the claims asserted are private causes of action that will have no benefit to the general public as a whole. Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. (Code Civ. Proc., § 1021.5.) Here, Plaintiffs allege that the failure to abate an ongoing severe bed bug infestation at the property created a public nuisance and the uninhabitable conditions are injurious to the health and safety of Plaintiffs and the public at large. Defendant has not demurred to the public nuisance cause of action to argue that it fails to state sufficient facts. Because Plaintiffs are seeking to abate what they allege to be a
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		public nuisance, their claim that they will be entitled to attorney fees under section 1021.5 if they prevail on their claims may stand. Lastly, Defendant argues that the prayer for injunctive relief is not supported by any of the claims set forth in the Complaint because those claims arise out of a hotel stay that has been concluded. Defendant ignores the fact that Plaintiffs have asserted a public nuisance claim, under which they may seek to enjoin the nuisance. (Code Civ. Proc., § 731.) In light of all the above, the Motion to Strike is DENIED. Defendant to give notice.
104	Halum vs. Jaguar Land Rover North America, LLC 25-01523324	Motion to Strike Portions of Complaint Defendant Jaguar Land Rover North America, LLC's ("Defendant") motion to strike portions of Complaint is GRANTED with 15 days leave to amend. This is an action for Violations of the Song-Beverly Consumer Warranty Act (CCP §1790, et seq.). Defendant moves for an order striking Prayer for Relief, Page 8, Section 5, line 18 of the Complaint, which reads "For civil penalty in the amount of two times Plaintiff's actual damages." Defendant contends that Plaintiff did not plead compliance with CCP §871.24 and is therefore not entitled to civil penalties. CCP §871.24 provides, in relevant part: (a) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: (1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of

	the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle. (2) Demand that the manufacturer repurchase or replace the motor vehicle. *** (e)(1) A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code shall not be allowed or maintained if both of the following conditions are present: (A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney. (B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice. *** (h) An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.
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		In opposition, Plaintiff does not deny that Section 871.24 is applicable to this case. However, Plaintiff contends that, because the statute does not expressly state that compliance must be pled, there is no pleading requirement. In addition, Plaintiff contends that the statute was in fact complied with prior to the filing of the Complaint. While the statute does not address the pleading requirements, courts interpreting statutes in other contexts have held that compliance with statutory prerequisites is an element that must be pled by the plaintiff. (See, e.g., <i>Caliber Bodyworks, Inc. v. Superior Ct.</i> (2005) 134 Cal. App. 4th 365, 371 (pleading in PAGA action); <i>Kim v. Konad USA Distribution, Inc.</i> (2014) 226 Cal.App.4th 1336, 1345-46 (pleading requirement in actions for FEHA violations). Accordingly, the motion is granted. Defendant to give notice
105	Abinante vs. Collins 25-01457284	1. Motion to Appear Pro Hac Vice x 2 Plaintiffs Dr. Matthew Abinante, D.O., Rume Health, LLC, and Rume Medical Group, Inc. move this Court for orders granting the Applications of Kelly B. Kramer and Hiral D. Mehta for Admission Pro Hac Vice as counsel herein. (ROAs 369, 370). Motions are granted per CRC 9.40(a). 2. Case Management Conference Moving party to give notice.
106	Prime Healthcare Services - Garden Grove, LLC vs.	Motion to Seal

	Optumcare Management, LLC 23-01357480	Defendant OptumCare Management, LLC moves for an order sealing Exhibits G, K, M, N, O, P, and Q to the Wood Declaration in support of Optum's Motions in Limine Nos. 1-8, Exhibits A, C, F, G, H, and K to the Poth Declaration in support of Plaintiffs' Motions in Limine Nos. 1-3, and Exhibits 5-7, 13, 15, 17, and 18 to the Wood Declaration in support of Optum's Oppositions to Plaintiffs' Motions in Limine Nos. 1-3 and Addendum to Optum's Motion in Limine No. 7. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) Exhibits G, K, 5, 6, and 7 to the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration include references to patient names and account numbers. This information is confidential and protected and there is no public interest in this information that overrides the patients' right to privacy. (Manela v. Superior Court (2009) 177 Cal.App.4th 1139, 1150; Oiyee v. Fox (2012) 211 Cal.App.4th 1036, 1070.) If the exhibits are not sealed, the right to privacy of these nonparty patients will be prejudiced and the requested sealing is narrowly tailored. Thus, the Motion as to Exhibits G, K, 5, 6, and 7 of the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration is GRANTED. Exhibits M, N, O, P, Q, 13, 15, 17, and 18 to the Wood Declarations and Exhibit G to the Poth Declaration contain information regarding analytical methods, reimbursement approaches, pricing methodology, and benchmarking analyses. Optum contends disclosure of
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		this nonpublic information would provide competitors insight into nonpublic methodologies, contractual arrangements, and business strategy. When disclosure of private and confidential financial information relating to the business operations of a party would interfere with that party's ability to compete in the marketplace, a sealing order may be appropriate. (See <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286.) Additionally, "[c]ourts have found that the protecting of trade secrets is an interest that can support sealing records in a civil proceeding." (<i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Optum's requested sealing is narrowly tailored to those exhibits that contain proprietary and sensitive business information and there is no public interest in this information that overrides the parties' interests. Thus, the Motion as to Exhibits M, N, O, P, Q, 13, 15, 17, and 18 to the Wood Declarations and Exhibit G to the Poth Declaration is GRANTED. Moving party to give notice.
107	Szeto vs. Woo 19-01087212	Motion for Attorney Fees Defendants/cross-complainants Kent Salveson and EQD LLC ("EQD") move for an order granting them an award of attorney's fees against plaintiff/cross-defendant Gene Szeto, jointly and severally with his counsel Shun C. Chen, in the sum of \$30,247.80 in conjunction with their opposition to Szeto's anti-SLAPP motion and \$55,000.00 in conjunction with Szeto's unsuccessful appeal of the denial of the anti-SLAPP motion. "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion,

pursuant to Section 128.5.” (Code Civ. Proc., § 425.16(c)(1).) Attorney’s fees under the anti-SLAPP statute and section 128.5 may be assessed against a party and the party’s attorney or both where there is a determination that the anti-SLAPP motion is frivolous, meaning totally and completely without merit. (Moore v. Shaw (2004) 116 Cal.App.4th 182, 199.) Totally and completely without merit means that “any reasonable attorney would agree such motion is totally devoid of merit.” (Ibid., emphasis in original.)

As applicable here, “[t]he trial court's authority to award fees and costs under section 425.16, subdivision (c), includes authority to award fees incurred in responding to an appeal of an order granting or denying a special motion to strike, or of an order awarding attorney fees in connection with such motion. (Carpenter v. Jack in the Box Corp. (2007) 151 Cal.App.4th 454, 461, citing Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Szeto’s request for judicial notice is DENIED as irrelevant to the disposition of this motion.

Szeto argues this motion was not timely filed under Cal. Rules of Court, rule 8.278(c)(1) because it was not filed within 40 days after issuance of the remittitur. Rule 8.278 provides that a party claiming costs awarded by a reviewing court must serve and file a verified memorandum of costs under rule 3.1700 within 40 days after issuance of the remittitur. This rule relates to a claim for costs awarded by a reviewing court and is not applicable here because the Court of Appeal ordered that Szeto, Salveson, and EQD shall each bear their own costs and, moreover, recoverable costs do not include attorney’s fees. (Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1150.)

The time limits for filing a motion for attorney fees under Code of Civil Procedure section 425.16(c) are imposed by rules 3.1702 and 8.104 and “do not commence to run until entry of judgment at the

	conclusion of the litigation.” (Carpenter v. Jack in the Box Corp. (2007) 151 Cal.App.4th 454, 468.) Thus, Szeto’s argument that this motion was untimely filed fails. Next, Szeto contends that the instant motion was not timely served. However, Szeto’s arguments relate to a February 24, 2026 hearing date and are clearly related to the prior motion for fees. Thus, this argument also fails. In the supporting declaration filed with Szeto’s opposition, counsel for Szeto asserts that the moving papers were never served. However, Szeto’s opposition does not raise any arguments regarding lack of service. Szeto’s responding memorandum must contain all “evidence and arguments relied on[.]” (Cal. Rules of Court, rule 3.1113(b).) Because this argument is not raised in the opposition memorandum, it is disregarded. Salveson and EDQ point to the Court’s July 10, 2025 Minute Order granting defendant/cross-complainant Sung Yi’s motion for attorney’s fees, in which the Court found that Szeto’s special motion to strike Yi’s cross-complaint was frivolous. Szeto’s special motion to strike against Yi’s cross-complaint for declaratory relief raised virtually identical arguments as Szeto’s special motion to strike against Salveson’s and EDQ’s declaratory relief cause of action. For the same reasons set forth in that order, the Court finds Szeto’s special motion to strike as Salveson’s and EQD’s declaratory relief cause of action was frivolous. As to Szeto’s anti-SLAPP motion against Salveson’s and EDQ’s reimbursement cause of action, as the Court previously held, ordinarily, a cross-complaint will not be considered a SLAPP suit because a cross-complaint usually arises from the underlying dispute alleged in the complaint rather than from the litigation process. (Third Laguna Hills Mutual v. Joslin (2020) 49 Cal.App.5th 366, 372.) Further, Szeto argued that the reimbursement cause of action arise out of his constitutionally protected right of
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petition because it was filed in retaliation for the filing of his own FAC. However, the Court found that this cause of action does not arise out of Szeto's act of filing the FAC, as the cause of action merely alleged that Salveson and EDQ would be entitled to reimbursement if Szeto is granted relief because otherwise he would be unjustly enriched. The Court found that Szeto's filing of the FAC is not what would necessitate the requested relief. The Court of Appeal affirmed the Court's ruling, holding that the reimbursement cause of action arises out of the parties' dispute concerning ownership of the properties and whether Salveson or EQD have any obligations with regard to Szeto's judgment against Woo, i.e., out of the underlying dispute and not Szeto's act of filing his FAC. Most notably, Szeto's arguments against the reimbursement cause of action were the same as those against the declaratory relief cause of action. Szeto set forth no persuasive argument in his motion that the cross-complaint was filed in response to his filing of the FAC, in contravention of his right of petition. The Court finds that any reasonable attorney would agree that Szeto's arguments regarding retaliation and against Salveson and EQD were devoid of any merit.

In light of the above, the Court finds that Szeto's special motion to strike Salveson's and EQD's cross-complaint was frivolous and they are entitled to attorney's fees under section 425.16(c).

Reasonable Fees

The court considers the rate prevailing in the community for similar work and uses the lodestar method by calculating the number of hours reasonably expended multiplied by the reasonable hourly rate; the lodestar rate may be adjusted based on factors specific to the case. (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1055.)

Mr. Balonick has tried more than 460 cases to verdict from New York to California. His hourly rate of \$500.

	He spent a total of 91.66 hours researching, reviewing documents, and drafting the opposition to Szeto’s anti-SLAPP motion and is requested \$30,247.80, which reflects roughly two-thirds of those hours at \$500/hour. He spent a total of 193.68 hours addressing Szeto’s appeal and is requesting \$56,728.00 for the appeal. Szeto argues that the amount requested should be significantly reduced because the time spent on the second cause of action is not recoverable. However, Mr. Balonick has already discounted the requested fees to reflect that Salveson and EDQ did not prevail on the second cause of action. Szeto further argues that the first and third causes of action share the same circumstances such that less time should have been required to address them and the hourly rate of \$500 is grossly inflated. The Court finds the hourly rate of \$500 is reasonable in light of Mr. Balonick’s experience and the prevailing rate in the community for similar work. The Court finds the hours spent opposing the anti-SLAPP motion and Szeto’s appeal, however, to be excessive. The Court will reduce the number of hours spent on the opposition to 30 hours and award fees for roughly two-thirds of that time, and reduce the number of hours spent opposing the appeal to 70 hours and award fees for roughly two-thirds of that time as well, for a total award of \$33,333.00. In light of all the above, Salveson’s and EQD’s motion for attorney fees is GRANTED. The Court awards a total fee award of \$33,333.00. Plaintiff Gene Szeto and his attorney of record, Shun C. Chen of Law Offices of Shun C. Chen are ordered, jointly and severally, to pay to Salveson and EQD the amount of \$33,333.00 within 60 days of this order. Moving party to give notice
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108	Reyes-Schiller vs. Hoffman 23-01364350	1. Motion to Strike or Tax Costs 2. Motion for Attorney Fees Defendants Steven J. Hoffman, individually, and Steven J. Hoffman, Trustee of the Hoffman Exemption Trust, created under the provisions of The Robert and Bobbie Hoffman Revocable Living Trust dated January 24, 2005 move for attorney’s fees and costs in their favor against plaintiffs Audrey Reyes-Schiller and Raquel Soto in the amount of \$141,050.00 in fees and costs of \$3,345.37. Separately, Plaintiffs have moved to tax the costs claimed by Defendants. Defendants’ Motion for Attorney’s Fees Plaintiffs dismissed this entire action with prejudice on September 8, 2025. (ROA 166.) Civil Code section 1717(b)(2) provides that if “an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section.” However, section 1717 only applies to bar attorney’s fees and costs in relation to contract claims, not tort claims. In <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 602, the California Supreme Court considered the issue of whether a defendant may recover attorney fees incurred in defending against an action asserting both tort and contract claims brought by a plaintiff when the plaintiff voluntarily dismisses the action before trial. The Court concluded “that in voluntary pretrial dismissal cases, Civil Code section 1717 bars recovery of attorney fees incurred in defending contract claims, but that [] Civil Code section 1717 . . . [does not] bar[] recovery of attorney fees incurred in defending tort or other noncontract claims.” (Ibid.) The Court went on to hold that the seller defendants in that action were the prevailing parties under the real estate contract with the plaintiffs, as plaintiffs did not obtain any of the relief they requested by voluntarily dismissing the action with prejudice. (Id. at p. 609.)
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	Here, the California Residential Purchase Agreement and Joint Escrow Instructions includes an attorney's fee and cost provision which provides: In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 30A. In this action, Plaintiffs alleged that, in the sale of the property to Plaintiffs, Defendants failed to disclose hidden material defects of the property, such as covered up mold, significant flood and water damage, electrical fire damage, foundation problems, and sink holes. There can be no dispute that these allegations arise out of the Residential Purchase Agreement. All of the tort causes of action arise out of the same allegation that Defendants failed to disclose certain defects and/or represented that the property was free of defects. Based on Santisas, Defendants are entitled to attorney's fees under the contract for the tort causes of action asserted in Plaintiffs' Complaint. Plaintiffs argue that attorney's fees should not be granted because the dismissal was obtained through duress and was not voluntary. They contend that Defendants' counsel exploited Plaintiffs' pro per status by threatening Plaintiffs with a defamation suit, accusing them of real estate fraud, threatening to seek over \$100,000.00 in fees and costs, and advising them that dismissing was the best way to end the matter without disclosing that it would make Defendants prevailing parties eligible for fees. Plaintiff Reyes-Schiller states that defense counsel contacted her on September 2, 2025 and told her that she had no case and would lose in court and if she continued, he would go after her for attorney fees and legal fees over \$100,000.00 and would sue her for defamation. She further states that in response to counsel's bullying, threats, and representations, she agreed to drop the case. Counsel did not inform her that dismissing the
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	case with prejudice would expose Plaintiffs to attorney's fees under the contract. Plaintiffs have not shown that the dismissal of their action was obtained through duress. They cite case law stating that economic duress occurs when wrongful acts coerce assent with no reasonable alternative. Defendants' counsel's representation of his clients' interests in conversations with Plaintiffs is not a wrongful act. While Plaintiffs complain that counsel exploited their pro per status by threatening to seek fees and costs without explaining that Plaintiffs would be exposed to fees and costs if Plaintiffs voluntarily dismissed their action, it is clear that Plaintiffs understood that they were representing themselves after their former counsel withdrew and, therefore, they could not have reasonably relied upon defense counsel for legal advice. Thus, Plaintiffs' arguments regarding duress and unsolicited legal advice are rejected. Next, Plaintiffs contend that the number of hours for a case dismissed pre-trial is excessive and the \$650/hour rate is excessive for an Orange County real estate dispute. Counsel for Defendants has been practicing law for over 35 years and specializes in complex real estate, trust, and business litigation. His customary hourly rate for litigation of the complexity presented in this action is \$650-800/hour and his current rate for work on this action is \$650/hour. He has been lead counsel in numerous trials, arbitrations, and references and he is a principal of ClintonBailey, APC. Based on counsel's experience, the Court finds that counsel's hourly rate of \$650 is reasonable. However, the Court agrees with Plaintiffs that the number of hours claimed by counsel is excessive. Counsel billed 35 hours for "Initial Evaluation & Research" work, including analysis of the Complaint, research on trustee disclosure exemptions, and preparation of responsive pleadings (two demurrers and
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	a motion to strike). At most, the Court finds one hour to review the Complaint, two hours to research exemptions, and 15 hours to prepare the demurrers and motion to strike, to be reasonable for this straightforward real estate action. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132; PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096.) Counsel also billed 15 hours to draft the answer, which is 9 pages. The Court finds this to be excessive. Instead, one hour of time is reasonable for the preparation of this pleading. Counsel billed 54 hours to draft multiple sets of written discovery, responses, and objections, and review Plaintiffs’ responses and objections. While counsel details some discovery issues in his declaration, such as last-minute deposition cancellations by Plaintiffs, he provides no details regarding the extent of discovery performed. Because this was a straightforward case that likely did not involve many documents, the Court finds that written discovery was likely not extensive. Further, no discovery motions were filed. Therefore, the Court determines that 15 hours is the number of hours that reasonably could have been expended on discovery. Defense counsel claims 63 hours for preparing the two Motions for Judgment on the Pleadings, one on behalf of each Defendant. While the research and drafting of these Motions likely did take a significant amount of time, the Court finds over 30 hours for each Motion to be excessive. The Court finds a total of 30 hours, or 15 hours for each Motion, to be reasonable. The Court finds the remainder of the hours claimed to be reasonable. Based on the above deductions, the lodestar for attorney’s fees should be reduced to \$74,100.00. On April 13, 2026, Defendants filed a “supplemental motion for attorney’s fees and costs” requesting additional fees incurred in opposing Plaintiffs’ motion to set aside their dismissal. Defendants argue that they were forced to incur additional fees to oppose the
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	motion and therefore request a supplemental award of \$27,695.00 in fees and \$140.68 in costs. Plaintiffs argue the supplemental request is procedurally flawed because there is a pending appeal of the order denying the motion to set aside, Defendants have not established prevailing-party status, no allocation has been made between the contract and tort claims, rendering the entire supplemental request barred or unrecoverable, and the 42.6 hours claimed at an inflated \$650 hourly rate is excessive and unreasonable. The mere fact that Plaintiffs have filed an appeal of the order denying the motion to set aside does not divest the Court of jurisdiction over Defendants’ fee request. “[T]he trial court ‘retains jurisdiction to entertain a motion for attorney fees despite an appeal[.]’ ” (Robertson v. Rodriguez (1995) 36 Cal.App.4th 347, 360; see also Nazemi v. Tseng (1992) 5 Cal.App.4th 1633, 1639 [“In regard to the relationship between a motion for attorney’s fees and the effect of an appeal, it has been held that a motion for attorney’s fees is not premature despite a notice of appeal.”].) As Defendants point out, “a supplemental ‘cleanup’ declaration capturing additional fees incurred up to and through the date of the hearing on a fees motion . . . is a routine task in attorney fees motion practice[.]” (Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc. (2022) 73 Cal.App.5th 764, 783.) Thus, the Court will award Defendants fees incurred in opposing Plaintiffs’ motion to set aside the dismissal. However, the Court agrees that the requested supplemental fees are inflated. The Court will grant 10 hours for preparing the opposition, 2 hours for preparing for and appearing at the hearing, and 2 hours for reviewing the notice of appeal, client communications, and preparing the supplemental fee papers. This reflects a supplemental fee award total of \$9,100.00.
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		Plaintiffs’ Motion to Tax Costs Plaintiffs’ Motion to Tax Costs was filed on October 2, 2025. The Memorandum of Costs was filed and served by Defendants on September 10, 2025, with service by email. Therefore, Plaintiffs had 15 days plus two court days in which to file a motion contesting costs. (Cal. Rules of Court, Rule 3.1700(b)(1); Code Civ. Proc., § 1010.6(a)(3)(B).) Plaintiffs’ deadline was September 30, 2025. Plaintiffs’ Motion to Tax Costs was filed two days late on October 2, 2025. Therefore, the Motion to Tax Costs is DENIED. Based on all the above, Defendants’ Motion for Attorney’s Fees is GRANTED in the amount of \$74,100.00 plus costs of \$3,345.37, along with supplemental fees of \$9,100.00 plus supplemental costs of \$140.68. Defendants’ evidentiary objections to the Declaration of Audrey Reyes-Schiller are OVERRULED. Defendants to give notice
109	Phipps vs. Hyundai Motor America 25-01481884	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Hyundai Motor America (“Defendant”) moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff’s Owner’s Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiff Don Phipps (“Plaintiff”) untimely opposed the motion. The Court notes that the opposition was untimely filed by one Court day. Plaintiff’s counsel submitted a declaration explaining the untimeliness. (ROA 65.) In order to resolve this case on its merits, the Court will consider the late filed opposition. (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016))

2 Cal.App.5th 252, 262 [“[A] trial court has broad discretion to accept or reject late-filed papers.”]; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.”].)

For the reasons explained below, the Motion is DENIED.

The Court finds that there is no evidence that Plaintiff assented to the arbitration agreements in the Warranty Handbook or Bluelink Connected Services Agreement.

“[W]hile doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.” (Johnson v. Walmart Inc. (9th Cir. 2023) 57 F.4th 677, 680-681 [internal quotations and citations omitted] (Johnson).) “[A]rbitration is strictly a matter of consent ... and thus is a way to resolve those disputes—but only those disputes—that the parties have agreed to submit to arbitration.” (Id. at p. 681; accord, Coinbase, Inc. v. Suski (2024) 602 U.S. 143, 148.) “As ‘arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ (Johnson, at p. 681 [internal quotations omitted].)

To determine whether the parties have agreed to arbitrate a dispute, federal courts apply state-law principles of contract formation. (Berman v. Freedom Financial Network, LLC (9th Cir. 2022) 30 F.4th 849, 855.)

To form a contract under California law, there must be mutual assent. (Herzog v. Superior Court (2024) 101 Cal.App.5th 1280, 1293-1294; Long v. Provide Commerce, Inc. (2016) 245 Cal.App.4th 855, 862.)

“[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (Long, at p. 862 [internal quotations omitted].) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (Herzog, at pp. 1293-1294.)

A signed arbitration agreement is one manner of manifesting consent (see *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 850), but it is not the only manner. “ ‘[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.’ [Citation.] Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement, can be based, for example, on ‘conduct from which one could imply either ratification or implied acceptance of such a provision.’ ” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176.)

Assent, however, requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944 (*Blizzard*); *Stover v. Experian Holdings, Inc.* (9th Cir. 2020) 978 F.3d 1082, 1086 [“notice—actual, inquiry, or constructive—is the touchstone for assent to a contract”]; see *Herzog, supra*, 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1089.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the same thing, which occurs only when the [provider] puts the

	consumer on constructive notice of the contractual terms.” (Sellers v. JustAnswer LLC (2021) 73 Cal.App.5th 444, 461 (Sellers); accord, Herzog, at p. 1294.) “[W]hether the terms appear on a physical piece of paper or a computer screen, ‘California law is clear—“an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.” ’ [Citation.]” (Sellers, supra, at p. 461; accord, Herzog, supra, 101 Cal.App.5th at pp. 1293-1294; Long, supra, 245 Cal.App.4th at p. 862.) Here, nothing shows Plaintiff was put on notice of the arbitration agreement in the owner’s handbook prior to purchasing the vehicle. While Plaintiff may have been aware that a warranty was provided with the purchase of the vehicle, there is no evidence that Plaintiff assented to Defendant’s unexpressed understanding that Plaintiff would be bound by an arbitration agreement. Defendant has therefore failed to demonstrate Plaintiff’s mutual assent to the arbitration agreement in the handbook. (See Esparza v. Sand & Sea, Inc. (2016) 2 Cal.App.5th 781, 790 [holding arbitration agreement unenforceable where offeree lacked a reasonable opportunity to read or learn of the arbitration provision at the time of signing].) For Bluelink Connected Services Agreement, Defendant presents “a redacted spreadsheet containing information from the internal HAEA database record of Plaintiff’s assent to the CSA on June 29, 2022. Column F indicates the version of the CSA that Plaintiff accepted, and Column H indicates the date Plaintiff accepted the CSA. Column G indicates the date Plaintiff first enrolled in Bluelink services. Column K indicates how acceptance of the CSA took place. The abbreviation “DWP” indicates that Plaintiff accepted the CSA using the Dealer-Assisted Enrollment process on the Dealer Web Portal.” (Dee Declaration of Vijay
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Rao, ¶ 19, Ex. A.) Defendant then provides a copy of the CSA and a sample of “the content and general layout that Plaintiff would have seen when he assented to the then-effective CSA on the DWP using the Dealer-Assisted Enrollment process.” (Dee Declaration of Vijay Rao, ¶¶ 19 and 20, Exs. B and C.)

Importantly, Plaintiff’s claims are brought pursuant to statute and are not rooted in Bluelink Connected Services Agreement. Defendant has failed to demonstrate the Bluelink Connected Services Agreement covers Plaintiff’s claims in this case. While the Bluelink Connected Services Agreement purports to cover any and all disputes between the parties regarding “[Plaintiff’s] Vehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal.App.5th 675, 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (Rice v. Downs (2016) 248 Cal.App.4th 175, 188.)

As noted by the Supreme Court, Song-Beverly disputes do not flow from the contract between the parties but rather “from obligations imposed by statute” and that such disputes “are not intimately founded in or intertwined with the sales contracts.” (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1126.)

Given the above, the Court finds that (1) Defendant cannot establish that Plaintiff assented to the arbitration agreement in the owner’s handbook and (2) Defendant cannot establish that Plaintiff’s claims have their roots in the relationship between Plaintiff and Defendant which was created by the Bluelink Connected Services Agreement.

		The Motion to Compel Arbitration is DENIED. Defendant shall provide a responsive pleading no later than 10 Court days after notice of this ruling. In addition, because this action was filed on May 9, 2025, the parties shall be prepared to discuss their current compliance and plans to comply with Code of Civil Procedure section 871.26 at the hearing. Plaintiff to give notice.
110	Helberg vs. Santa's Garden, Inc. 25-01428362	Motion for Summary Judgment and/or Adjudication Defendant, Santa’s Garden, Inc. (“Santa’s Garden”), moves for an order granting summary judgment, or in the alternative, summary adjudication as to the Complaint filed by Plaintiff, Heather Helberg (“Plaintiff”). The Motion is DENIED in its entirety. As a threshold matter, this motion is brought only by Defendant, Santa’s Garden, Inc. (“Santa’s Garden”). On March 10, 2026, Santa’s Garden filed a notice of errata correcting that the motion was filed on behalf of Santa’s Garden only. (ROA 66.) Next, the Court disregards the last page of the reply as it exceeds the 10-page limit for replies. (California Rules of Court (“CRC”), rule 3.1113(d).) Santa’s Garden’s Separate Statement of Undisputed Material Facts Plaintiff contends that the motion is fatally procedurally deficient and is in violation of CRC, rule 3.1350(b), (d), and (h), and that the three issues specified in Santa’s Garden’s Separate Statement of Undisputed Material Facts (“SSUMF”) fail to conform to the format required by CRC, rule 3.1350(h).

		The three issues set forth in Santa’s Garden’s SSUMF comply with the format set forth in CRC, rule 3.1350(h). CRC, rule 3.1350(b) provides, in part, that if summary adjudication is sought, “the specific cause of action, affirmative defense, claim for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (CRC, rule 3.1350(b).) CRC, rule 3.1350(d) provides that a Separate Statement of Undisputed Material Facts must separately identify each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (CRC, rule 3.1350(d)(1)(A).) Additionally, a Separate Statement of Undisputed Material Facts must separately identify “[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (CRC, rule 3.1350(d)(1)(B).) Issue One states, “Moving Party did not breach the duty to use reasonable care because Plaintiff assumed the risk.” Issue Two states, “Plaintiff’s action is barred by the recreational use immunity statute codified in Civil Code section 846 because the pumpkin patch gives permission to others for a recreational purpose.” The Court finds that Issue One and Issue Two sufficiently identify the defenses upon which Santa’s Garden seeks summary adjudication. Issue Three states, “Plaintiff cannot meet her burden of proof for negligence or product liability because she cannot prove the material elements of those causes of action. She cannot prove duty, breach, and causation because she cannot identify any abnormal or dangerous conditions. Defendant Santa’s Garden had no
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	involvement in the design, manufacturing, production stream or marketing stream.” Plaintiff correctly argues that this does not comply with the requirements of CRC, rule 3.1350(d) and (h), and does not separately identify each cause of action. Issue Three combines two causes of action and arguments with one set of material facts, such that on its face, Santa’s Garden fails to identify what purported material fact(s) applies to which cause of action. In this regard, the SSUMF is deficient on its face. The facts critical to each cause of action are not adequately identified for Plaintiff to rebut the arguments and facts applicable to the claims for negligence and product liability. “Where a remedy as drastic as summary judgment is involved, due process requires a party to be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail. [Citation.]” (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 316.) The Court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, Rule 3.1350 is discretionary, not mandatory. [Citations.]” (Truong v. Glasser (2009) 181 Cal.App.4th 102, 118.) Based on the foregoing, the Court DENIES the motion for summary adjudication as to Issue Three. Merits A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) A plaintiff must set forth specific facts showing that a triable issue of
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		material fact exists as to a cause of action or a defense thereto. (Ibid.) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-850.) “A summary judgment may be granted only where it is shown that the entire ‘action’ ‘has no merit.’ [Citation.]” (Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805, 834.) If the defendant fails to make the initial showing, it is unnecessary to examine the plaintiff’s opposing evidence and the motion must be denied. (Stewart v. Superior Court (2017) 16 Cal.App.5th 87, 100.) Here, three of the four causes of action in the Complaint are asserted against Santa’s Garden: the first cause of action for premises liability, the second cause of action for negligence, and the fourth cause of action for negligent products liability. As to Issue One, Santa’s Garden contends that the it did not breach the duty to use reasonable care because Plaintiff assumed the risk. The second affirmative defense in Santa’s Garden’s Answer alleges that “Plaintiff had the express knowledge of the risks and hazards set forth in the complaint, as well as the magnitude of the risks and hazards, and thereafter knowingly and willing assumed those risks.” (ROA 10.) As phrased, Issue One appears to seek adjudication of the affirmative defense of primary assumption of the risk as to the entire Complaint, and not as to any specific cause of action. However, Santa’s Garden does not argue or show that the doctrine of primary assumption of the risk applies to a claim of negligent products liability (fourth cause of action).
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“The question whether the primary assumption of risk doctrine applies, and therefore whether a duty of care exists, is a legal question to be decided by the court. [Citation.]” (Whelihan v. Espinoza (2003) 110 Cal. App. 4th 1566, 1572.) “The doctrine ‘embodies a legal conclusion that there is “no duty” on the part of the defendant to protect the plaintiff from a particular risk.’ [Citation.]” (Ibid.)

There are two species of assumption of risk: primary and secondary. (Avila v. Citrus Cmty. Coll. Dist. (2006) 38 Cal. 4th 148, 161.) “Primary assumption of the risk arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms. [Citation.]” (Ibid.) “Under this duty approach, a court need not ask what risks a particular plaintiff subjectively knew of and chose to encounter, but instead must evaluate the fundamental nature of the sport and the defendant’s role in or relationship to that sport in order to determine whether the defendant owes a duty to protect a plaintiff from the particular risk of harm. [Citation.]” (Ibid.) Primary assumption of the risk operates as a complete bar because of a legal determination that the defendant did not owe any duty to protect the plaintiff from the particular risk of harm involved in the claim. (Peart v. Ferro (2004) 119 Cal. App. 4th 60, 71.)

Here, the first cause of action for premises liability and second cause of action for negligence allege that Santa’s Garden had a duty to exercise reasonable care for the health and safety of persons lawfully on the subject property, such as Plaintiff. (Complaint, ¶¶ 9, 14.) The fourth cause of action for negligent products liability alleges a duty to properly manufacture, design, assemble, package, test, fabricate, analyze, inspect, install, merchandise, market, distribute, label, advertise, promote, sell, rent, lease, repair, retrofit, modify and provide adequate warnings concerning the inflatable slide. (Complaint, ¶ 26.)

		Thus, the first two causes of action allege a different type of duty from the fourth cause of action. Santa’s Garden cites to Knight v. Jewett (1992) 3 Cal. 4th 296, for the proposition that the primary assumption of the risk doctrine operates as a complete bar to Plaintiff’s recovery, but Knight v. Jewett (1992) 3 Cal. 4th 296 involved claims of negligence, assault, and battery. (Knight v. Jewett (1992) 3 Cal. 4th 296, 301.) Santa’s Garden also cites to Nalwa v. Cedar Fair, L.P. (2012) 55 Cal. 4th 1148 and Shin v. Ahn (2012) 42 Cal. 4th 482, but neither case involved a claim for negligent products liability. (Nalwa v. Cedar Fair, L.P. (2012) 55 Cal. 4th 1148, 1153 [two products liability counts dismissed leaving claims for common carrier liability, willful misconduct, and negligence]; Shin v. Ahn (2012) 42 Cal. 4th 482, 487 [negligence action].) As Santa’s Garden fails to establish that the primary assumption of the risk doctrine applies to the claim for negligent products liability, Santa’s Garden fails to meet its initial burden that the primary assumption of the risk doctrine is a defense to all three causes of action asserted against Santa’s Garden. “The motion must be denied if the movant fails to establish entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers. [Citation.]” (Schmidlin v. City of Palo Alto (2007) 157 Cal.App.4th 728, 744 [finding that the notice of motion was not sufficient to tender, as a distinct subject for summary adjudication, plaintiff’s federal claim for excessive force where it prayed only for an adjudication of the entire seventh cause of action].) Notably, in reply, Santa’s Garden argues only that the primary assumption of the risk bars Plaintiff’s negligence and premise liability claims. (Reply 3:10-11.) To the extent that Santa’s Garden sought summary
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adjudication only as to Plaintiff's claims for premises liability and/or negligence on the grounds that each is barred by the primary assumption of the risk doctrine, proper notice of this subissue was not given. In order to move for summary adjudication, the party moving must specify in its notice of motion and motion the claim, causes of action, or issues it is moving on. (California Rules of Court, rule 3.1350 (b).) "If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion." (Homestead Savings v. Superior Court (1986) 179 Cal. App. 3d 494, 498 [citing Code Civ. Proc. § 1010] ("Homestead").) The court has no power to adjudicate others. (Maryland Cas. Co. v. Reeder (1990) 221 Cal. App. 3d 961, 974 n. 4; Homestead, supra, 179 Cal. App. 3d at p. 498.) "There is a sound reason for this rule: '... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.' [Citation.]" (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1546.) A party does not waive any requirement of notice for a subissue that was not set forth in the notice by responding to the argument. (Homestead, supra, 179 Cal. App. 3d at p. 498.)

Based on the foregoing, the Court DENIES the motion for summary adjudication as to Issue One.

As to Issue Two, Santa's Garden contends that Plaintiff's action is barred by the recreational use immunity codified in Civil Code section 846 because the pumpkin patch gives permission to others for recreational purpose. The twelfth affirmative defense in Santa's Garden's Answer alleges that "the action is barred by recreational use immunity at Civil Code section 846." (ROA 10.)

		Like with Issue One, Issue Two seeks adjudication as to all of Plaintiff's claims against Santa's Garden in this action, but fails establish that recreational use immunity set forth in Civil Code section 846 applies to a claim for negligent products liability. Civil Code section 846 provides that "[a]n owner of any estate any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others for any recreational purpose or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering for a recreational purpose, except as provided in this section." (Civ. Code § 846(a).) The fourth cause of action for negligent products liability alleges that Santa's Garden failed to properly manufacture, design, assemble, package, test, fabricate, analyze, inspect, install, merchandise, market, distribute, label, advertise, promote, sell, rent, lease, repair, retrofit, modify and provide adequate warnings concerning shark slide. (Complaint, ¶¶ 26-28.) Thus, alleged liability is not premised upon Santa's Garden ownership or any other interest in real property. Consistent with Issue One, as Santa's Garden fails to establish that the recreational use immunity applies to the claim for negligent products liability, Santa's Garden fails to meet its initial burden that the recreational use immunity bars all three causes of action asserted against Santa's Garden. Again, in reply, Santa's Garden argues that recreational use immunity independently bars Plaintiff's negligence and premises liability claims. (Reply, 9:5-7.) To the extent Santa's Garden sought or seeks to adjudicate the applicability of the recreational use immunity to individual causes of action, proper notice was not given.
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		Based on the foregoing, the Court DENIES the motion for summary adjudication as to Issue Two. Lastly, Santa’s Garden argues in passing that Defendant, Great Air, Inc.’s cross-complaint related to the cause of action for strict products liability should be summarily adjudicated. (Motion, 24:14-16.) This is not raised as an issue in the notice of motion, and thus, not properly before the Court. In light of the Court’s ruling above, the Court declines to rule on Santa’s Garden objections as they are not material to the disposition of the motion. (Code Civ. Proc. § 437c(q).) Plaintiff to give notice
111	Tran vs. BridgeCreek Properties 25-01491199	<u>Motion for Summary Judgment and/or Adjudication</u> Defendants BridgeCreek Properties and Superior Protection Services, Inc. move for summary judgment against Plaintiff Suong Tran as to all causes of action alleged in the operative Complaint, including the first cause of action for battery, second cause of action for intentional infliction of emotional distress, third cause of action for elder abuse, fourth cause of action for negligence, and fifth cause of action for negligent hiring. Plaintiff failed to oppose the motion and the Court considers the non-opposition as a concession to the merits of the motion. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the

threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

Even so, the Court finds that the evidence proffered in support of the motion for summary judgment establish that Defendants are entitled to summary judgment on all causes of action alleged in the operative Complaint.

Defendants present requests for admission that were deemed admitted by Plaintiff. Code of Civil Procedure section 437c(b) clearly states that the motion “shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b) [emphasis added].)

Moreover, the Discovery Act expressly states that “[a]ny matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300.” (Code Civ. Proc., § 2033.410, subd. (a) [emphasis added].)

Here, based on the requests for admission that were deemed admitted against Plaintiff, Plaintiff has admitted the following:

- The First Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 23.)
- The Second Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 24.)
- The Third Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 25.)
- The Fourth Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 26.)
- The Fifth Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 27.)

		(See ROAs 54 and 76.) Given the above, the Court finds that there are no triable issues of material facts in this case. The Motion for Summary Judgment is GRANTED in its entirety. Defendants to give notice. 2. <u>Motion for Terminating Sanctions</u> Defendants BridgeCreek Properties and Superior Protection Services, Inc.’s (“Defendants”) move pursuant to Code of Civil Procedure sections 2023.010, 2023.030(d), 2025.450, and 2033.280 for an order imposing terminating sanctions against Plaintiff Suong Tran. Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).) Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party
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		engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 12.) A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 12; Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions.”].) Terminating sanctions are inappropriate if the “imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery.” (Thomas v. Luong (1986) 187 Cal.App.3d 76, 81.) Even so, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (Liberty Mutual Fire Ins. Co. v. LcL
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Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1105.)

Here, the Court finds that Plaintiff has repeatedly failed to participate in the discovery process and abide by the Court's orders regarding the same. Defendants have been attempting to obtain information from Plaintiff through discovery since August 21, 2025. Plaintiff has yet to provide any responses to the outstanding discovery despite court orders, monetary sanctions, and Defendants' meet and confer efforts. Plaintiff has also generally failed to participate in this litigation, including failing to participate in informal discovery conferences and the related meet and confer efforts ordered by the Court. Plaintiff has also "failed to communicate with [Plaintiff's own] counsel for a substantial period of time" and "remains unreachable." (ROA 43.)

Plaintiff did not oppose this motion and therefore proffered no evidence establishing otherwise.

Given the above, the Motion is GRANTED. SET OSC RE DISMISSAL WITH PREJUDICE.

Plaintiff to give notice

Motion to Be Relieved as Counsel of Record

The unopposed motion of attorney K.T. Tran of the Law Offices of K.T. Tran to be relieved as counsel for Plaintiff Suong Tran DENIED WITHOUT PREJUDICE.

This motion was originally heard on 03/10/2026. As reflected in the Court's 03/10/2026 Minute Order, the Court ordered as follows:

"The Court confirms the tentative ruling as follows:

Motion to Be Relieved as Counsel of Record is continued to 04/21/2026 at 10:00 AM in this department.

		Moving Attorney shall filed proof of service of the moving papers on the client no later than 16 court days before 04/21/2026. Moving Attorney shall also serve and file an amended MC-052 that establishes service on the client under section 3(a). Opposition and reply briefs are permitted pursuant to code. Case Management Conference is continued to 04/21/2026 at 10:00 AM in this department. Moving Attorney to give notice.” (ROA 105.) Here, Moving Attorney filed proof that the documents were served on Plaintiff on 12/15/2025. (ROA 102.) This proof of service does not establish, however, that the moving papers were timely served “on the client and all other parties who have appeared in the case.” (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1362, subd. (d) [emphasis added].) In addition, the Court also ordered Moving Attorney to cure the deficiencies in the declaration in support of the motion, MC-052. The Court ordered Moving Attorney to “serve and file an amended MC-052 that establishes service on the client under section 3(a).” Moving Attorney did not filed an amended MC-052. The Court also held a hearing on this motion on 04/21/2026. Prior to that hearing, Moving Attorney did not cure any of the deficiencies discussed above. After the hearing, the Court continued the hearing on this motion once more to 05/19/2026. Still, Moving Attorney has not cured the deficiencies discussed above. As such, the Motion is DENIED WITHOUT PREJUDICE. Moving Attorney to give notice. 4. Case Management Conference
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